

		Additionally, as the instant Motion is unopposed, Plaintiff has not rebutted the above evidence nor demonstrated “facts requisite to an effective service.” (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1439-1440.) Thus, the Motion to Quash is GRANTED.
54	RX Development Associates, INC. vs. Selective Diagnostics, INC. 21-01190952	Motion to Set Aside/Vacate Default and Judgment No Tentative Ruling. Parties to Appear.
55	Khairalla vs. Mercedes-Benz USA, LLC 25-01523475	Motion to Compel Arbitration Defendant Mercedes-Benz USA, LLC’s motion to compel arbitration and stay this case is GRANTED. <u>The Arbitration Agreement</u> Defendant MBUSA contends the arbitration agreement is located within the Lease Agreement. Defendant purports to attach the Lease Agreement as Ex. 1 to the Declaration of Remillard. (ROA 13.) However, as noted by Plaintiff, Ex. 1 is not the Lease Agreement, but other documents relating to the subject vehicle. Defendant concedes this attachment was inadvertent, points out that the relevant terms of the arbitration agreement were stated verbatim in the motion, and attaches the Lease Agreement to the Supplemental Declaration of Tingen. (ROA 42.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. [Citation]. A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signatures.’ [Citation.] At this step, a movant need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and